

Gopal Gautam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 May 2014 · WRIT - C No. 28540 of 2014 · **Writ disposed; liberty to apply under Supply Code 2005**

HEADNOTE

A writ complaining of non-grant of an electricity connection, unsupported by any document of a proper application, is disposed of with liberty to apply under the U.P. Electricity Supply Code, 2005; such an application is to be decided expeditiously in accordance with law.

FACTUAL SUMMARY

Gopal Gautam approached the Allahabad High Court in a writ petition against the State of Uttar Pradesh and two other respondents, complaining that he was not being provided an electricity connection despite having applied. Counsel for respondent nos. 2 and 3 accepted notice. The Court found that the petitioner had not placed on record any document showing that a proper application had ever been made.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

application for new connection

HOLDING

Where the petitioner has not shown a proper application on record, the writ is disposed of with liberty to make a proper application for an electricity connection under the U.P. Electricity Supply Code, 2005, to be disposed of expeditiously in accordance with law. ¶ 1

FLAG order invokes Supply Code 2005 generally; no clause numbered

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ complaining of non-grant of an electricity connection, unsupported by any document of a proper application, is disposed of with liberty to apply under the U.P. Electricity Supply Code, 2005; such an application is to be decided expeditiously in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD MADE A PROPER APPLICATION OR WAS ENTITLED TO A NEW ELECTRICITY CONNECTION

¶ 1